

FAA/DOT Audit Inspection & Record Keeping

PRESENTED BY NATA COMPLIANCE SERVICES

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2025 AEA International
Conference & Trade Show





Who is NATA Compliance Services?

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You Received an Inspection Notice...Now What?

Don't panic! Follow the "Records/Documents Necessary for Inspection."

If you are using NATACS as your Third Party Administrator, call to schedule a free inspection prep.

Other tips:

- ▶ Set aside time to get organized so you are not rushed through the inspection
- ▶ Store your inspection items in one location for easy access
- ▶ Use a New Hire Checklist

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RECORDS/DOCUMENTS NECESSARY FOR INSPECTION

To facilitate the inspection, please be prepared to discuss your DOT/FAA mandated Drug and Alcohol Testing Program and have the following records available for review during the inspection.

NOTE: Some items on this list are required only if those events have occurred or if the practice is followed. Other documents listed may not be required by regulation, but available, will assist our inspection of your program.

1. A list of all current and terminated employees hired and/or transferred into safety-sensitive positions in the past 24 months. Please include the employee's name, hire and/or date of transfer into safety-sensitive function, and termination date (if applicable)
 - 1a. Provide the following documentation for each employee listed:
 - Personnel action form, payroll record, or other document indicating the effective date of hire or transfer
 - Employment application and/or resume
 - Pre-employment drug testing custody and control forms and the corresponding verified test results
 - 1b. Be prepared to provide the following documentation for each employee listed in:
 - Job descriptions
 - Documentation of the first time the employee performed a safety-sensitive function.
2. All requests for drug and alcohol testing information sent to previous employers in the last 24 months, including documentation of any attempts to obtain the information from previous employers.
3. Documentation of drug and alcohol testing information you released to other DOT regulated employers within the past 24 months.
4. Be prepared to provide proof of performance for safety-sensitive employees, for example:
 - flight attendant duty records
 - pilot flight logs
 - duty timesheets
 - maintenance records with stamp identification list
 - air tour flight records
 - work orders
 - invoices/receipts

Records and Documents Necessary For Inspection

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- ▶ If an item is listed as “Be Prepared,” you do not need to have the records printed, but you should know where they are easily found.
- ▶ Never leave a section empty!
- ▶ Write a quick statement, noting the request is not applicable to your company or has not happened within the requested timeframe.



Item #1A: List of Safety-Sensitive Employees

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A list of all *current* and *terminated* employees hired and/or transferred into safety-sensitive positions within the last 24 months.

Include the employee's:

- ▶ Name
- ▶ Hire and/or date of transfer into a safety-sensitive function
- ▶ Termination date (if applicable)
- ▶ Documentation of hire date
- ▶ Employment application / resume
- ▶ Pre-employment testing forms

Item #1B: List of Safety-Sensitive Employees

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- ▶ Be Prepared Item
 - ▶ Job description
 - ▶ Documentation of first time the employee performed a safety-sensitive function



Item #2: Drug & Alcohol History Checks

This is all requests for Drug and Alcohol history you sent to prior DOT regulated employers for the previous 24 months.

- ▶ The FAA will compare the resume/application to this form.
- ▶ Good Faith attempts

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Part I
Section I: To be completed & signed by the employee/applicant

PART I	
I. EMPLOYEE/APPLICANT:	
Employee Printed or Typed Name	Employee Social Security Number
1. I have been employed by one (or more) DOT-regulated company and subject to DOT regulations within the last 5 years. (Check one.)	
☐ Yes ☐ No	
If "Yes", provide name(s) of DOT-Regulated employer(s) and complete the attached release form for each DOT-regulated company.	
DOT-Regulated Employer: _____	
DOT-Regulated Employer: _____	
DOT-Regulated Employer: _____	
DOT-Regulated Employer: _____	
DOT-Regulated Employer: _____	
2. I have tested positive, or refused to test, on any pre-employment drug or alcohol test administered by a DOT-regulated employer to which I have applied for, but did not obtain, safety-sensitive transportation work covered by the DOT agency drug and alcohol testing rules during the past two years. (Check one.)	
☐ Yes ☐ No	
If "Yes", provide name of Substance Abuse Professional: _____	
Address: _____	
City, State, Zip: _____	
Phone: _____	
Fax: _____	
Employee/Applicant Signature	Date

Item #3: Responding to Drug & Alcohol History Checks

Documentation of all drug and alcohol information you released to other DOT-regulated employers in the last 24 months.

- ▶ Date request received
- ▶ Date you responded
- ▶ Documentation provided
- ▶ Method of response

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Drug & Alcohol History Records Check

Rev. 20250102

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Instructions:

- in accordance with 49 CFR § 40.25 employers are required to request records from DOT-regulated companies where the employee worked in the previous two years. Companies may request more than two years' worth per their company policy.
- Part I - To be completed by the employer and signed by the employee-applicant
- Part II - To be completed by the previous employer

~ Part I ~

I authorize my previous employer, _____ at _____,
(Company Name) (Street Address)
_____ to release my U.S. Department of Transportation drug and
(City) (State) (Zip code)
alcohol testing records to c/o NATA Compliance Services at +1.866.768.2881
(Designated Employer Representative) (Fax No.)
On behalf of _____
(New Employer Name)
☐ 2-Years
☐ More than 2 Years (please indicate how many, per your company policy): _____

I understand that this release complies with the requirements of DOT 49 CFR Part 40 §40.25 and FAA regulation 14 CFR Part 120; and is limited to the below DOT drug and alcohol testing items:

1. Alcohol tests with a result of 0.04 or higher
2. Verified positive drug tests
3. Refusals to be tested
4. Other violations of DOT agency drug and alcohol testing regulations
5. Information obtained from previous employers of a drug & alcohol rule violation
6. Documentation, if any, of completion of the return-to-duty process following a rule violation

Employee-Applicant Name (Please Print): _____

Employee-Applicant Signature: _____ Date: _____

~ Part II ~

To be completed by the previous employer

Part II-A. While employed...

- | | |
|---|---|
| Yes ☐ No ☐ | 1. Did the employee have alcohol tests with a result of 0.04 or higher? |
| Yes ☐ No ☐ | 2. Did the employee have verified positive drug tests? |
| Yes ☐ No ☐ | 3. Did the employee refuse to be tested? |
| Yes ☐ No ☐ | 4. Did the employee have other violations of DOT agency drug & alcohol testing regulations? |
| Yes ☐ No ☐ | 5. Did a previous employer or the employee report a drug and alcohol rule violation to you? |
| Yes ☐ No ☐ N/A ☐ | 6. If you answered "yes" to any of the above items, did the employee complete the return-to-duty process? |

NOTE: If you answered "yes" to any of the above questions, you must provide the records concerning the result, violation and/or return-to-duty documentation (e.g., SAP report(s), follow-up testing results, etc.).

Part II-B. Name and title of person providing information in 11-A:

Name of Designated Employer Representative: _____ Title: _____

Phone Number: _____ Date: _____

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Item #4: Proof of Performance

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Be prepared - provide proof of performance for safety-sensitive employees:

- ▶ Work Orders
- ▶ Duty Timesheets
- ▶ Maintenance Records
- ▶ Invoices/receipts



Item #5: Random Pool List

List of all employees added to the random pool in the last 24 months.

- ▶ Employee's name
- ▶ Job title
- ▶ Date added to the random pool
- ▶ Date removed, if terminated

NOTE: Always ensure employees are added or removed from the random pool prior to the next selection period.

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Prepared for:

Demo Company - Drug Program

FAA/DOT Employee Enrollment From: 12/6/2015 to 12/5/2017

Last Name	First Name	Middle Name	Position	Job Category	Date Added	Date Removed
Aaron's	Danny's's	Robert	Mechanic	Aircraft Maintenance	09/15/2017	
Aaron's	Danny's's	Robert	Mechanic	Aircraft Maintenance	07/03/2017	09/15/2017
Aaron's	Danny's's	Robert	Mechanic	Aircraft Maintenance	01/03/2017	07/03/2017
Ace	Suri		Mechanic	Aircraft Maintenance	09/20/2017	09/28/2017
Ace	Suri		Mechanic	Aircraft Maintenance	08/01/2017	09/20/2017
Adams	Mark		Pilot	Flight Crewmember	12/01/2017	12/01/2017
Adams	Mark		Pilot	Flight Crewmember	11/03/2017	11/03/2017
Adams	Mark		Pilot	Flight Crewmember	03/01/2017	09/11/2017
Add	Employee		Pilot	Flight Crewmember	09/28/2017	
Add	Employee		Pilot	Flight Crewmember	09/28/2017	09/28/2017
Add	Employee		Pilot	Flight Crewmember	07/24/2017	07/24/2017
Addams	Ana		Flight Crew	Flight Attendant	01/04/2016	04/11/2016
Addams	Arthur Bob		Flight Crew	Flight Attendant	10/06/2017	10/06/2017
Addams	Arthur Bob		Flight Crew	Flight Attendant	10/02/2017	10/02/2017
Addams	Arthur Bob		Flight Crew	Flight Attendant	04/03/2017	08/18/2017
Addams	Bill		Flight Crew	Flight Attendant	06/01/2017	
Addams	Gustav		Flight Crew	Flight Attendant	09/01/2016	

Item #6: Random Selections

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This item is for all random tests and selections made in the last 24 months:

- ▶ Drug / Alcohol testing forms
- ▶ A list of all random selections made
- ▶ A full list of all employees eligible in each selection period
- ▶ Reason/Documentation for incomplete tests

Agency: FAA
Date of Selection: 7/11/2017
Employees Selected: 20

Selection Date	Employee Name	Selected For	Job Site
7/7/2017 17:18 UTC	Jefferson, Nicholas	DRUG	
7/11/2017 14:54 UTC	Addams, Fred	DRUG	
7/11/2017 14:52 UTC	Addams, Gustav	DRUG	
7/11/2017 14:52 UTC	Garfield, Vicky	DRUG	
7/11/2017 14:52 UTC	Grant, Cristobal	DRUG	
7/11/2017 14:52 UTC	Harrison, Nicholas	DRUG	
7/11/2017 14:52 UTC	Harrison, Nicholas Bob	ALCO	
7/11/2017 14:52 UTC	Harrison, Teresa Bob Ann	DRUG	
7/11/2017 14:52 UTC	Hayes, Paloma	ALCO	
7/11/2017 14:52 UTC	Hoover, Ike	ALCO	
7/11/2017 14:52 UTC	Madison, Arthur	DRUG	
7/11/2017 14:52 UTC	Madison, Fay Bob	DRUG	
7/11/2017 14:52 UTC	McKinley, Bertha	ALCO	
7/11/2017 14:52 UTC	Nixon, Peter	ALCO	
7/11/2017 14:52 UTC	Pierce, Claudette	DRUG	
7/11/2017 14:52 UTC	Tyler, Arthur	DRUG	
7/11/2017 14:52 UTC	Van Buren, Nana	DRUG	
7/11/2017 14:52 UTC	Washington, Laura Bob	DRUG	
7/11/2017 14:52 UTC	Washington, Wilfred	DRUG	

Additional Selections

7/24/2017 20:00 UTC	Tyler, Arthur	ALCO
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Total Eligible Employees: 190

Item #7: Contractors and Vendors

Provide a list of all contractors/vendors providing safety-sensitive functions by contract, and proof of their drug and alcohol compliance. This could be:

- ▶ Copy of the contractor's current program registration with the FAA
- ▶ Paragraph A449 from the Operations Specifications

Make sure the contractor is enrolled in either their company's random pool or yours.

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FAA DRUG AND ALCOHOL TESTING PROGRAM REGISTRATION (sam...)
(Document is located at: http://www.faa.gov/about/office_org/headquarters_offices/avs/offices/aam/drug_alcohol/starting/media/R...)

Check one: ☐ New Registration ☐ Registration Renewal (CONN _____) ☐ Registration Amendment (CONN _____)

Type of Company: ☐ Contractor (if you are a part 145 certificate holder, list certificate numbers to be covered under this registration below) ☐ Air traffic control facility not operated by the FAA or by or under contract to the U.S. Military

Company Name: _____

Physical Address: _____
Address _____ City _____ State _____ Zip _____
☐ Check box, if your program records are kept at the physical address location

Mailing Address: _____
Address _____ City _____ State _____ Zip _____
☐ Check box, if your program records are kept at the mailing address location

Records Address: _____
Address _____ City _____ State _____ Zip _____
(The records address, if different, should be the location where an inspection would be held, NOT the address of a service agent.)

List DBA's and/or part 145 certificates covered by this registration, if applicable (use attachment if necessary): _____

Identify the type of safety-sensitive function(s) included in your program:

☐ Flight crewmember duties	☐ Aircraft dispatcher duties	☐ Air traffic control duties
☐ Flight attendant duties	☐ Ground security coordinator duties	☐ Aviation screening duties
☐ Flight instruction duties	☐ Aircraft maintenance or preventive maintenance duties (as defined in 14 CFR part 43)	☐ Operations control specialist duties

Please describe the safety-sensitive duties you plan to provide (use attachment if necessary): _____

How many safety-sensitive employees will be covered by this Registration: _____

Indicate whether you are: ☐ A Staffing Company ☐ Not A Staffing Company

Certification Statement: I certify that I/my company will comply with 14 CFR part 120 and 49 CFR part 40. If I am a contractor, I certify that I intend to provide safety-sensitive functions, directly or by contract, to a part 119 certificate holder with authority to operate under part 121 or 135, an air traffic control facility not operated by the FAA or by or under contract to the U.S. military, or an Air Tour Operator conducting flights under part 91.147.

Signature: _____ Date: _____
Authorized Representative (Service Agents may not sign for company)

Print Name: _____ Title: _____

Telephone: Business - _____ Facsimile - _____ Cell - _____

E-mail address: _____

Send form to: Federal Aviation Administration, Drug Abatement Division (AAM-810)
800 Independence Avenue, S.W., Room 806
Washington, DC 20591
Fax Number - (202) 267-5200; Email - drugabatement@faa.gov Office Number - (202) 267-8442;

DO NOT WRITE BELOW – FOR FAA USE ONLY

FAA Registration number: CONN _____ Registered by: _____

Date Registered/Amended/Renewed: _____ Expiration Date: _____

Revision 11d JUN 1, 2015 For more information on the FAA drug and alcohol testing program, please visit: <http://www.faa.gov/go/drugabatement>

Item #8: Post-Accident Testing

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All post-accident testing for the last 24 months:



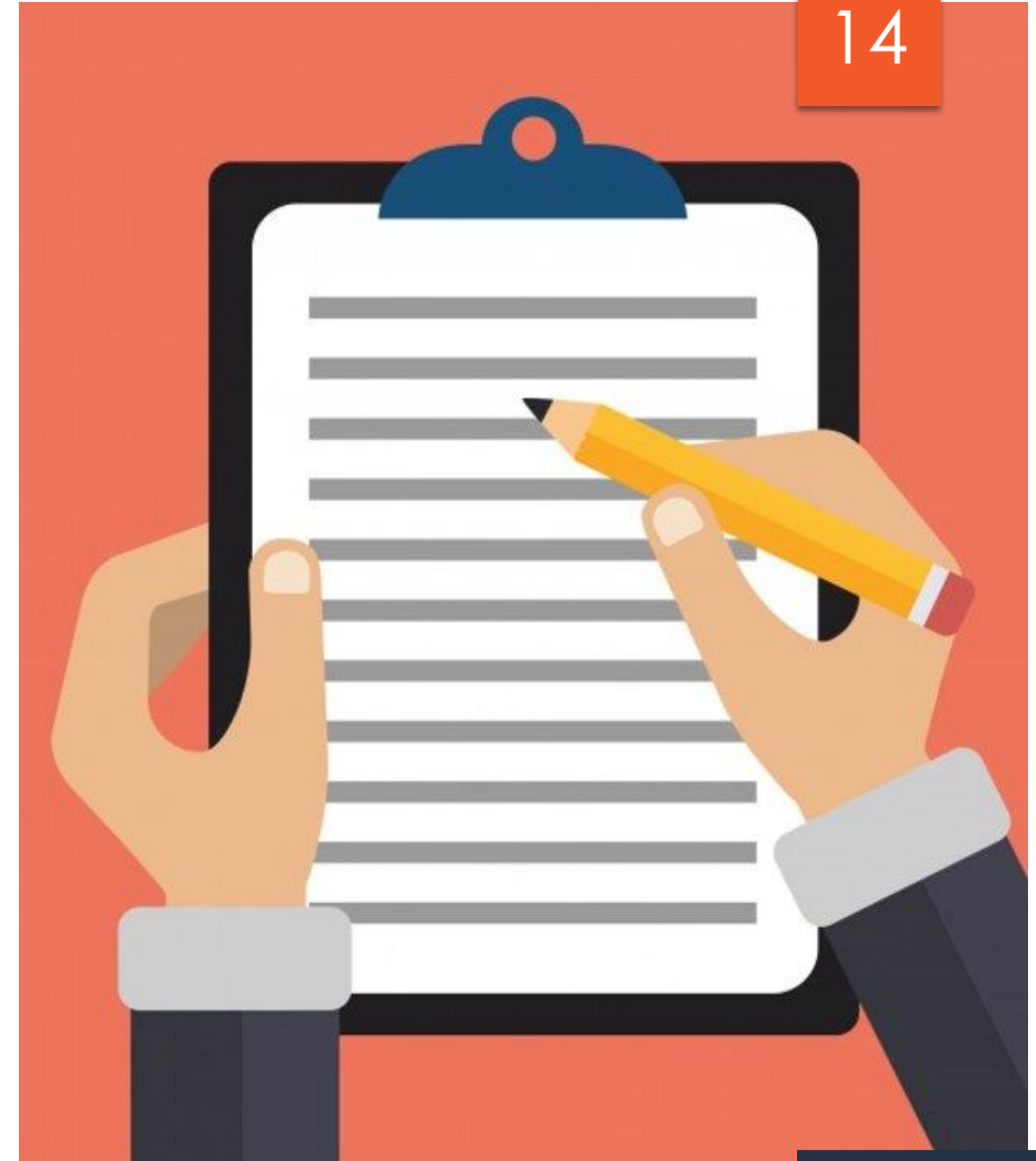
- ▶ You will need to provide the verified test results and CCF forms if drug testing was conducted
 - ▶ 32 hours timeframe
- ▶ Alcohol testing forms and results if alcohol testing was conducted
 - ▶ 2-8 hours timeframe
- ▶ Documentation of the accident
- ▶ Documentation of why the test was not conducted, if applicable

Item #9: Reasonable Cause/Suspicion Testing

- ▶ You will need to provide the verified test results and the CCF or ATF forms
- ▶ Full documentation of the signs/symptoms to validate the reason for the test
- ▶ Documentation of training for supervisor(s) involved in the decision to test

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Items #10 & 11: Positive Test Results

- ▶ All records relating to a positive Drug or Alcohol test in the last **60 months** or **5 Years**
- ▶ Verified test results and CCF or ATF forms
- ▶ Documented immediate removal from safety-sensitive position
- ▶ Notification to the Federal Air Surgeon, if applicable

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FAA/Drug Abatement Division's Suggested "Checklist: Steps to Take After an Employee Violates Drug/Alcohol Regulations for Aviation Employers"

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Checklist: Steps to Take After an Employee Violates Drug/Alcohol Regulations

Note: A violation includes a verified positive drug test result; confirmed breath alcohol test result of 0.04 or greater; on-duty alcohol use; pre-duty alcohol use; alcohol use following an accident; or refusal to test for any drug or alcohol test conducted under FAA regulation (14 CFR part 120).

GENERAL INFORMATION

Employee's Name/ID or SSN: _____

Safety-Sensitive Position: _____

Is the applicant/employee certificated by the FAA under part 61, 63, 65 or 67? ☐ YES ☐ NO

Date and Location of Test: _____

Test type: ☐ Pre-Employment ☐ Random ☐ Reasonable Cause/Suspicion
☐ Post-Accident ☐ Return-to-Duty ☐ Follow-Up

Date and Description of the violation: _____

ACTION CHECKLIST

☐ **Removal from Safety-Sensitive Function**

Date Removed: _____

☐ **Referral to Substance Abuse Professional**

Date and Method of Referral (e.g., certified mail, e-mail, telephonic, etc.): _____

☐ **Report Violation to Federal Aviation Administration (using our [sample forms](#))**

Date of Report and Means of Transmission (e.g., verified mail, e-mail, fax, etc.): _____

Note: All violations by an individual that holds a part 67 certificate MUST be reported to the FAA within 2 working days after the violation. All refusals by any individual that holds a part 61, 63, and 65 certificate MUST be reported to the FAA within 2 working days after the violation. You may submit the report (using our [sample forms](#)) via fax to 202-267-5200, email to aam830@faa.gov, or by verified mail to the following address:

Federal Aviation Administration
Drug Abatement Division
Special Investigations Branch, AAM-830
800 Independence Ave., SW, Room 806
Washington, DC 20591

Name & Signature of Official Completing Form: _____

Items #10 & 11 Cont. – Positive Test Results

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- ▶ Referral to a Substance Abuse Professional (SAP)
 - ▶ SAP must be in the applicant/employee's area
 - ▶ Documentation that you sent the referral
- ▶ Company Policy
 - ▶ Zero tolerance policy
 - ▶ Return-To-Duty Process
 - ▶ SAP evaluation reports
 - ▶ SAP certification
 - ▶ Testing



Item #12: Refusal to Test

- ▶ Any refusal to submit to testing in the last **60 Months**
- ▶ Verified test results, CCF and ATF forms if applicable
- ▶ Documented immediate removal from safety-sensitive position
- ▶ SAP referrals
- ▶ If returned to duty: All related documentation showing the return-to-duty process was completed successfully
- ▶ Notification to the FAA of refusal by a part 61, 63, 65, 67 certificate holder

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Suggested Forms & Formats

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- Evidential Breath Testing Device Calibration Log Book (MS Word)
- Authorize the Release of Drug and Alcohol Testing Records
 - Release of Information Form – Suggested Format (MS Word)
 - Release of Information Form (Pilots Only – PRIA) (PDF)
 - Overview and Use of Form (Pilots Only – PRIA) (MS Word)
- Pre-employment Notification and Acknowledgement (MS Word)
- Notification to Report for Random Testing (MS Word)
- Reasonable Cause/Reasonable Suspicion Documentation Form (MS Word)
- Emergency Maintenance Report 14 CFR Part 91, for Fractional Ownership Operators (MS Word)
- Emergency Maintenance Report 14 CFR Sections 135/91.147 Operators (MS Word)
- Checklist: Steps to Take After an Employee Violates Drug/Alcohol Testing Regulations (PDF)
- Sample Reports for Verified Positive Drug Test Result, Prohibited Alcohol-Related Conduct or Refusal to Submit
 - Sample Report of Verified Positive Drug Test – Part 67 (MS Word)
 - Sample Report of Prohibited Alcohol-Related Conduct – Part 67 (MS Word)
 - Sample Report of Refusal to Submit – Part 61 63 65 (MS Word)
 - Sample Report of Verified Positive Drug Test – Other (MS Word)
 - Sample Report of Prohibited Alcohol-Related Conduct – Other (MS Word)
 - Sample Report of Non-DOT Alcohol-Related Conduct (PDF)
 - Sample Report of Refusal to Submit – Other (MS Word)
- Registering an Antidrug and Alcohol Misuse Prevention Program-Sample

Items #13-15:

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Item #13: Current Medical Review Officer Certification

Item #14: Semi Annual Laboratory Reports

Item #15: Management Information Systems (MIS) Reports for the previous 2 calendar years, if applicable

▶ Must be the certified submitted MIS reports

FAA FAQs

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How do I report a drug and alcohol testing issue of noncompliance under the FAA's voluntary disclosure reporting program?

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- ▶ To report a voluntary disclosure issue of noncompliance...follow the FAA's Advisory Circular, AC 120-117, Voluntary Disclosure Reporting Program for Apparent Violations of the Drug and Alcohol Testing Regulations, dated December 20, 2017.
- ▶ FAA Drug Abatement Division...+1.202.267.8442 or drugabatement@faa.gov.



If I hire a contract employee to perform safety-sensitive work, how can I ensure that the contract employee is tested under a FAA drug and alcohol testing program?

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The best way to verify a contractor's federal testing program is to obtain a copy of the contractor's program documentation, e.g., a copy of their current program registration, Letter of Authorization (A049), or Operations Specification paragraph (A449). If you obtain a copy of the contractor's program registration, A449, or A049, we consider it sufficient proof that the contractor conducts its own testing, and they are knowledgeable of what work their employee is performing and can remove from service any employee who has a drug or alcohol result that requires removal from safety-sensitive duties.

If you rely on a copy of the contractor's contract with a consortium or own statement, you may unknowingly fail to meet the requirement to ensure the contract employee is covered under an FAA-mandated drug and alcohol testing program.



Reminders

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Remember: All random selections in 2025 must be completed by **12/31/2025**.

Call us to schedule your individual inspection prep or to receive more information.

Questions?



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Thank you for attending!

SCAN ME



- ▶ New Hire Checklist
- ▶ Records/Documents Necessary for Inspection
- ▶ FAA Inspection Guide

Daniela Soto
Subject Matter Expert:
Drug & Alcohol Program

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